MUTUAL NON-DISCLOSURE AGREEMENT

Effective Date: [Date]

This Mutual Non-Disclosure Agreement (the "**Agreement**") is entered into by and between:

[Party A Name] ("**Party A**") and **[Party B Name]** ("**Party B**"),

collectively referred to as the "**Parties**" and individually as a "**Party**."

1. Definition of Confidential Information

"**Confidential Information**" means any and all non-public information disclosed by either Party to the other, whether orally, in writing, or by any other means, including but not limited to: trade secrets, business plans, financial data, customer lists, technical specifications, software, algorithms, marketing strategies, and any information marked or designated as confidential at the time of disclosure.

2. Obligations of Receiving Party

The receiving Party shall: (a) hold the disclosing Party's Confidential Information in strict confidence; (b) not disclose such information to any third party without the prior written consent of the disclosing Party; (c) use the Confidential Information solely for the purpose of evaluating and pursuing a potential business relationship between the Parties; and (d) protect the Confidential Information using the same degree of care it uses to protect its own confidential information, but in no event less than reasonable care.

3. Exclusions

Confidential Information shall not include information that: (a) is or becomes publicly available through no fault of the receiving Party; (b) was known to the receiving Party prior to disclosure, as demonstrated by written records; (c) is independently developed by the receiving Party without use of or reference to the Confidential Information; or (d) is rightfully received from a third party without restriction on disclosure.

4. Term

This Agreement shall remain in effect for a period of two (2) years from the Effective Date. The obligations of confidentiality shall survive the expiration or termination of this Agreement for an additional period of two (2) years.

5. Return of Materials

Upon written request by the disclosing Party or upon termination of this Agreement, the receiving Party shall promptly return or destroy all copies of Confidential Information in its possession, and shall certify in writing that it has done so.

6. Governing Law

This Agreement shall be governed by and construed in accordance with the laws of the State of New York, without regard to its conflict of law provisions. Any dispute arising under this Agreement shall be subject to the exclusive jurisdiction of the courts located in New York County, New York.

Party A

_____

Signature

_____

Date

Party B

_____

Signature

_____

Date